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March 18, 2019

Ms. Rachel Dickon, Secretary
Office of the Secretary
Federal Maritime Commission
Room 1046
800 North Capitol Street, NW
Washington, DC 20573

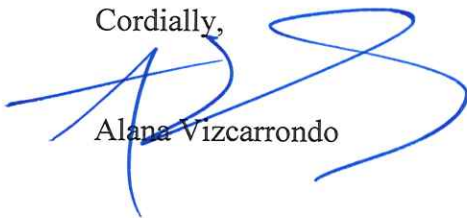
Re: Toyota de Puerto Rico, Inc. v. Puerto Rico Ports Authority, et. als.,
FMC Docket No. 19-02

Dear Ms. Dickon:

Please find enclosed the original and five copies of Toyota's Opposition to the Crowley's Motion to Dismiss and/or for Summary Judgment ("Opposition"), for filing in the above captioned-case.

The Opposition and its Exhibits are also being filed electronically.

Cordially,



Alana Vizcarrondo

Enclosures

**FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges**

TOYOTA DE PUERTO RICO, CORP.
Complainant

Docket No. 19-02

v.

PUERTO RICO PORTS AUTHORITY;
CROWLEY PUERTO RICO SERVICES;
AND OCEANIC GENERAL AGENCY INC.
Respondents

**OPPOSITION TO MOTION TO DISMISS AND/OR FOR SUMMARY JUDGMENT
AND MEMORANDUM OF LAW IN SUPPORT THEREOF**

TO THE HONORABLE ERIN M. WIRTH, Administrative Law Judge:

COMES NOW, Complainant, Toyota de Puerto Rico Corp., (herein after “Toyota”) by and through the undersigned attorneys, and very respectfully submits this Opposition to Crowley’s Motion to Dismiss and/or For Summary Judgment.

I. SUMMARY OF THE ARGUMENT

Toyota seeks reparations for the damages caused by Crowley Puerto Rico Services, Inc. (“Crowley”) unfair and unjustly discriminatory imposition of the Enhanced Security Fee (“ESF”). Toyota seeks this remedy before this Honorable Federal Maritime Commission (“the Commission”), because Crowley is an ocean common carrier within the meaning of the Shipping Act of 1984. Crowley holds itself to the public as engaging in the transportation of cargo for compensation between domestic and foreign ports. As such, it is subject to this Commission’s jurisdiction.

Significantly, Crowley does not categorically deny this in its *Motion to Dismiss and/or For Summary Judgment* (the “MTD”). It merely denies offering a transportation service between Japan or Mexico and Puerto Rico. Even if true, this denial would be insufficient to remove it from the ocean common carrier definition and would at least entitle Toyota to jurisdictional discovery.

Moreover, in collecting the illegal ESF, Crowley acted as a marine terminal operator (MTO), because it “engaged in the business” of providing “terminal facilities” in “connection with a common carrier”. Therefore, Crowley is also subject to the Commission’s jurisdiction as an MTO.

Crowley’s arguments on the merits are also unavailing. Its contention that the prohibitions against unreasonable and unjust discriminatory practices is directed at protecting ports and not particular shippers, does not preempt Toyota’s lawsuit. The ESF was not directed at Toyota as a “particular shipper”, but at all shippers who used the PRPA ports. Thus, the practice was targeted against the port, as the legislative history seems require.

Similarly, inapposite is Crowley’s contention that it may impose a discriminatory ESF because the Shipping Act would only prohibit it had Crowley published the ESF in its automated tariff system (46 U.S.C. § 40501). This contention belies the objectives of the Shipping Act. A common carrier is not required to publish all its tariffs in its automated tariff system. 46 U.S.C. §50501. Therefore, the statute’s prohibitions against discrimination are not defined in relation to published tariffs, but to tariffs in general. Limiting the prohibition against discrimination to published tariffs would undermine the law’s objective to “establish a nondiscriminatory regulatory process for the common carriage of goods by water in the foreign commerce of the United States...”. 46 U.S.C. § 40101(1). It would also undermine the general requirement that a common

carrier “enforce just and reasonable regulations and practices” for “receiving, handling, storing, or delivering property.”

Finally, Crowley’s argument that the claim is time-barred disregards the continuing violation doctrine that applies to this case and excepts the three-year statute of limitations of the Shipping Act. Since this determination can be made as a matter of law, summary judgment is appropriate in favor of Toyota.

II. ARGUMENTS IN OPPOSITION TO THE MOTION TO DISMISS

A. THE COMMISSION HAS JURISDICTION OVER OCEAN COMMON CARRIERS ENGAGING IN BOTH DOMESTIC AND FOREIGN SHIPMENTS AND OVER MARINE TERMINAL OPERATORS.

i. Crowley is an Ocean Common Carrier under the Shipping Act.

The Commission has limited regulatory jurisdiction to oversee defined activities of international shipping lines (“ocean common carriers”), marine terminal operators (“MTOs”), and ocean transportation intermediaries (“OTIs”), including non-vessel operating common carriers (“NVOCCs”) that provide certain regulated services in the United States foreign commerce. *See*, 46 U.S.C. §§40101-40102.

To avoid the Commission’s jurisdiction, Crowley alleged that it “only moved complainant’s cargo from Jacksonville to Puerto Rico”, and that “the Shipping Act does not apply to the carriage of such cargo”. *See*, MTD, at page 3. However, that fact alone is not conclusive of whether it is an ocean common carrier and whether there is subject matter jurisdiction.

The Shipping Act defines a “common carrier” as “a person holding itself out to the general public to provide transportation by water of passengers or cargo between the United States and a foreign country for compensation . . .” 46 U.S.C. § 40102(6), and an “ocean common carrier” as a “vessel operating common carrier”. 46 U.S.C. § 40102(17). Based on said definitions, the Commission amended its Regulations to implement the Shipping Act of 1984 and “to clarify the

definition of “ocean common carrier” to reflect the Commission’s interpretation of the term.”¹

Accordingly, it defined an “ocean common carrier” as a “common carrier that operates **for all or part** of its common carrier service, a vessel on the high seas or the Great Lakes between a port in the United States and a port in a foreign country [...]” 46 C.F.R. 515 (l). (Emphasis added).

The Commission has consistently held that “whether a carrier also engaged in domestic commerce as well as foreign commerce or engages exclusively in foreign commerce, **once the carrier engages in foreign commerce, this Commission's jurisdiction attaches.**”² (Emphasis added.)

Crowley posits that “even if CPR offered some service in the foreign commerce of the United States, that would not make it a common carrier within the meaning of the Shipping Act”. See, Motion, Footnote 2, at page 3. A plain reading of the applicable statute and regulation, *supra*, reveals that Crowley’s position is erred. Neither the statute nor the Commission’s Rules require that all the carrier’s operations be purely foreign for jurisdiction to attach. On the contrary, the Commission has recognized its jurisdiction to hear disputes when a carrier operates in both domestic and foreign trades, even if its foreign trade operations are much smaller than its domestic ones.³

Even if Cowley argues that all the cargo transported for Toyota was purely domestic, Crowley is still considered an ocean common carrier covered by the Shipping Act because it engages in foreign commerce as to other shippers.⁴ The Commission has held that the status of a

¹ See, Federal Register, Vol. 65, No. 89, May 8, 2000, at page 26506.

² *Crowley Liner Services, Inc., et. al. v. Puerto Rico Ports Authority*, 2001 WL 1632555 (2001 F.M.C.); Docket No. 00-02, September 20, 2001, at *8.

³ See, *NPR, Inc. v. Board of Commissioners of the Port of New Orleans*, 28 S.R.R. 1512 (ALJ 2000).

⁴ Even if, as alleged by Crowley in *footnote 2* of its MTD, the Commission only has jurisdiction “over marine terminal agreement involving carrier” but does not have jurisdiction over carrier’s operation in domestic commerce, the Commission still has jurisdiction to hear this Complaint. At stake in this case is precisely the unreasonableness of the Enhanced Security Fee collected by the carrier, pursuant to an agreement with the marine terminal operator (PRPA), in violation of the Shipping Act.

“person” under the Act is not determined by his or her own declaration of what he or she is, but what he or she is, in fact, doing.⁵ It has also been held that “a proper determination thus hinges on a consideration of the facts.” *Id.*

Therefore, in addition to considering Crowley’s representations in its Motion, the Commission should consider Crowley’s actions as well as the information publicly available in its website, in determining whether its activities fall within the definition of a regulated entity and/or regulated activities under the Shipping Act. Such review will conclude without reservation that Crowley holds itself out to the general public as a common carrier engaging in both, domestic and foreign commerce.

For example, as per Crowley’s website, its Puerto Rico to the Caribbean LCL Sailing Schedule includes weekly departures to certain British Virgin Islands, Dominican Republic and Jamaica, among others. *See*, Exhibit II. Also, as per its PR to Central America LCL Sailing Schedule, Crowley engages in foreign shipments to Costa Rica, El Salvador, Guatemala, Honduras, Nicaragua and Panama. *See*, Exhibit III. In sum, as per its Puerto Rico’s website, Crowley engages in both domestic and foreign shipments.⁶

Crowley is an ocean common carrier regulated by the Shipping Act and, as such, it is subject to the personal jurisdiction of the Commission.

ii. Crowley does not categorically deny it engages in foreign shipments with other shippers.

Instead of categorically denying that it engaged in any form of international trade, Crowley merely stated that: (1) it did not and does not offer a service from Mexico or Japan to Puerto Rico, (MTD, at page 3; Ayala Aff., ¶3); and (2) all of the cargo transported by CPR to complainant was

⁵ *See*, *Carolina Marine Handling, Inc. v. South Carolina State Ports Authority*, 2000 WL 722274 (2000 F.M.C.); Docket No. 99-16, May 2, 2000; *Marine Terminal Practices of the Port of Seattle*, 18. S.R.R. 141, 156 (1978).

⁶ *See*, Complete Sailing Schedule in https://webapps.crowley.com/old/liner-shipping-services/sailing_sched.asp.

tendered to CPR in Jacksonville, Florida and moved from there to Puerto Rico (Motion, at page 3; Ayala Aff., ¶4).

As per the information publicly available, however, Crowley engages in one or more international trades from Puerto Rico, including, the Caribbean and Central America. *See*, Exhibits I and II. Therefore, Crowley holds to the public as being an ocean common carrier within the definition of the Shipping Act. As held by the Commission, only minimal foreign shipments are necessary for jurisdiction to attach.⁷ So if Crowley's representations to the public are true, jurisdiction attaches and Crowley's Motion on contrary grounds should be denied.

In the alternative, Toyota should be allowed to conduct jurisdictional discovery. Crowley's status as an "ocean common carrier" under the Shipping Act is not determined by its own declaration of what it is, but what it is, in fact, doing.⁸ Because the final determination hinges on an evaluation of the facts, discovery would enable Toyota and this Honorable Commission to discern the scope of Crowley's transportation activities.

iii. Crowley acted as a Marine Terminal Operator when it collected the Enhanced Security Fee.

The ESF was charged to all shippers unloading cargo at the Port of San Juan. *See*, Verified Complaint at ¶22. It was allegedly collected to "recover ... all costs incurred by the Authority [Puerto Rico Ports Authority] in providing, repairing and maintaining an efficient scanning system, ... as well as providing better security and safety measures and/or related facilities at the Port of San Juan." Regulation No. 8067, art. IV, ¶ J.

Crowley began collecting the ESF from Toyota on November 20, 2011. *See*, Exhibit III, *Rodriguez's Affidavit*, ¶3. Since then, Crowley issued more than 650 invoices to Toyota collecting the ESF. *See*, Exhibit III, *Rodriguez's Affidavit*, ¶4. Crowley continued collecting the ESF even

⁷ *NPR, Inc. v. Board of Commissioners of the Port of New Orleans, supra*.

⁸ *See, Carolina Marine Handling, Inc. v. South Carolina State Ports Authority, supra*.

after it was declared unconstitutional by the Federal District Court for the District of Puerto Rico in October 16, 2013. *See*, Exhibit III, *Rodriguez's Affidavit*, ¶5. Toyota has paid to Crowley \$753,830.00 on account of the ESF. *See*, Exhibit III, *Rodriguez's Affidavit*, ¶6. Crowley's last invoice to Toyota collecting the ESF is dated 05/22/2016. *See*, Exhibit III, *Rodriguez's Affidavit*, ¶7. Toyota's last payment of the ESF to Crowley was on 12/29/2017. *See*, Exhibit III, *Rodriguez's Affidavit*, ¶8.

When collecting the ESF from Toyota, Crowley acted, not as a common carrier, but as a marine terminal operator. Marine terminal operators are entities regulated by and subject to the jurisdiction of the Commission.

Under the Shipping Act, a "marine terminal operator" means "a person engaged in the United States in the business of furnishing wharfage, dock, warehouse, **or other terminal facilities** in connection with a common carrier, or in connection with a common carrier and a water carrier . . ." 46 U.S.C. § 40102(14). (Emphasis added). The Marine Terminal Operator Schedule Regulation broadened the "marine terminal operator" definition to include "**common carriers who perform port terminal services**; and warehousemen who operate port terminal facilities", among others. 46 C.F.R. §525.1(13). (Emphasis added).

Said Regulation also defined "terminal facilities" as "one or more structures comprising a terminal unit, which include, but are not limited to, wharves, warehouses, covered and/or open storage spaces, [...] bulk cargo loading and/or unloading structures, landings, and receiving stations, used for the transmission, care and convenience of cargo and/or passengers in the interchange of same between land and water carriers or between two water carriers". 46 C.F.R. §525.1(18). "Terminal services" include the "checking, dockage, free time, handling, heavy

lift, loading and unloading, terminal storage, usage, wharfage, and wharf demurrage [...]” 46

C.F.R. §525.1(19).

Containerized cargo received at the Port of San Juan was supposed to be inspected through a “scanning imaging system” (“SIS”) that was funded through the collections of the ESF. Said fee was charged by Crowley on all tonnage entering the San Juan Port. *See*, Verified Complaint at ¶¶22- 23. The SIS was a “terminal facility” as defined by the Marine Terminal Operator Schedule Regulation because it was an “unloading structure” or “receiving station” “used for the transmission of cargo [...] in the interchange of same between land and water carriers”. 46 C.F.R. §525.1(18). “Only three shipping operators’ terminals [were] equipped with PRPA scanning facilities—Crowley, Horizon Lines, and Sea Star Lines”.⁹ Crowley had one scanning station at its terminals¹⁰. Accordingly, Crowley was providing a “terminal service” because in collecting the ESF, it engaged in the business of “checking, loading and unloading” of Toyota’s shipments.

As per the scanning procedure, cargo [was] scanned immediately prior to its departure from the terminal.¹¹ Prior to its release, each container was placed on a truck and moved to the terminal’s dispatch area. “There, a terminal operator confirm[ed] that the container [was] subject to release with appropriate paperwork, and the container move[d] into the scanning area. The truck [was] instructed to move through the scanner at the speed of five to seven miles per hour.” *Id.*

Therefore, in this role Crowley was also a marine terminal operator subject to the Commission’s jurisdiction.

B. CROWLEY’S ARGUMENTS AS TO SPECIFIC SECTIONS OF THE SHIPPING ACT FOR FAILURE TO STATE A CLAIM UPON WHICH RELIEF MAY BE GRANTED MUST BE DENIED.

⁹ *Camara de Mercadeo, Industria, y Distribucion de Alimentos v. Vazquez*, 2013 WL 5652076, at *5 (D.P.R. Oct. 16, 2013).

¹⁰ *Id.*

¹¹ *Id.*

i. Crowley Transported Toyota's Cargo Pursuant to a Service Contract.

Crowley alleges that because it is not an “ocean common carrier” under the Shipping Act, “any arrangement between it and complainant was not a service contract within the meaning of the Shipping Act, and these provisions [sections 41104(5) and 41104 (9)] are inapplicable.” *See*, Motion to Dismiss, page 4. As discussed above, however, Crowley is an ocean common carrier, so this argument does not avail it.

ii. As an ocean common carrier, Crowley's obligation not to impose discriminatory tariffs is not limited to tariffs published in an automated tariff system.

According to Crowley, services provided from Jacksonville to Puerto Rico were not covered by a published tariff, so that the prohibition against discriminatory tariffs of Section 41104 (4) of the Shipping Act is inapplicable. The argument follows that Crowley was entitled to impose a discriminatory ESF because the Shipping Act would only prohibit such discrimination had Crowley published the ESF in its automated tariff system (46 U.S.C. § 40501). Crowley's contention belies the objectives of the Shipping Act.

A common carrier is not required to publish all its tariffs in its automated tariff system. 46 U.S.C. §50501. Therefore, the statute's prohibitions against discrimination are not defined in relation to published tariffs, but to tariffs in general. Limiting the prohibition against discrimination to published tariffs would undermine the law's objective to “establish a nondiscriminatory regulatory process for the common carriage of goods by water in the foreign commerce of the United States...”. 46 U.S.C. § 40101(1). It would also undermine the general requirement that a common carrier “enforce just and reasonable regulations and practices” for “receiving, handling, storing, or delivering property.” Such an anomalous interpretation of the Shipping Act must be disavowed.

III. STANDARD OF REVIEW FOR A MOTION TO DISMISS

Rule 12 of the Commission's Rules of Practice and Procedure (the Rules) states that the Federal Rules of Civil Procedure will be followed in instances that are not covered by the Commission's Rules, to the extent that application of the Federal Rules is consistent with sound administrative practice. 46 C.F.R. § 502.12. It has been held that because the Commission's Rules do not address motions to dismiss for lack of subject matter jurisdiction or failure to state a claim, Federal Rules 12(b)(1) and 12(b)(6) apply in this case.¹²

When considering a motion to dismiss under Rules 12(b)(1) and (6), the court construes the complaint in the light most favorable to the plaintiff and accepts all well-pled facts alleged ... in the complaint as true.¹³

To survive a motion to dismiss for failure to state a claim under Rule 12(b)(6), a complaint must contain sufficient factual matter, accepted as true, to “state a claim to relief that is plausible on its face.”¹⁴ A claim “has facial plausibility when the plaintiff pleads factual content that allows the court to draw the reasonable inference that the defendant is liable for the misconduct alleged.”¹⁵ The complaint must be sufficient to “give the defendant fair notice of what the ... claim is and the grounds upon which it rests.”¹⁶

As discussed above, the Complaint in this case meets the burdens established by *Twombly* and *Iqbal*. The request for dismissal must be denied.

IV. ARGUMENTS IN OPPOSITION TO CROWLEY’S REQUEST FOR SUMMARY JUDGMENT

¹² *Mitsui O.S.K. Lines LTD. v. Global Link Logistics*, 2011 WL 7144008 (2011 F.M.C.), Docket No. 09-01 at *11; citing also, *The Lake Charles Harbor and Terminal District v. West Cameron Port, Harbor and Terminal District*, 2007 WL 2468431; Docket No. 06-02 (2007 F.M.C.).

¹³ *Id.*, citing, *Sinaltrainal v. Coca-Cola Company*, 578 F.3d 1252, 1260 (11th Cir. 2009).

¹⁴ *Bell Atlantic Corp. v. Twombly*, 550 U.S. 544, 570 (2007).

¹⁵ *Ashcroft v. Iqbal*, 129 S. Ct. 1937, 1949 (2009).

¹⁶ *Bell Atlantic*, 550 U.S. at 555 (quoting *Conley v. Gibson*, 355 U.S. 41, 47 (1957)); see also 5 Charles Alan Wright & Arthur R. Miller, *Federal Practice & Procedure Civ.* § 1215 (3d ed. 2010) (“[T]he test of a complaint’s sufficiency simply is whether the document’s allegations are detailed and informative enough to enable the defendant to respond.”).

A. THE SUMMARY JUDGMENT REQUESTED WITH RESPECT TO TOYOTA'S ABILITY TO RECOVER DAMAGES MUST BE DENIED.

i. The Collection of the ESF Falls Within the Continuing Violation Doctrine As An Exception to the Statute of Limitation. Toyota's Claim for Damages Is Not Barred.

The Shipping Act precludes recovery of damages suffered more than three years after the claim accrues.¹⁷ The continuing violation doctrine, however, is infused in Commission precedent. Under that doctrine, “any unlawful act which continues becomes not one act but a series of individual actions each time it is enforced, and the statute of limitations is to be measured against each act giving rise to an alleged new injury.”¹⁸

To establish that a continuing violation, a plaintiff must first show that the conduct took place “over a series of days or perhaps years.”¹⁹ Next, it must demonstrate “that an unlawful act occurred or that an illegal policy existed within the period prescribed by the statute [of limitations].” *Ruiz-Casillas v. Camacho-Morales*, 2004 WL 3622480, at *5 (D.P.R. Apr. 27, 2004).

In the instant action, respondents incurred in continuous unreasonable practices by recurrently collecting from Toyota the ESF for several years even after the ESF was declared to be in violation of the Commerce Clause.²⁰ Collection of the ESF configures a continuing violation, so that each time the fee was collected, there was a new discriminatory act that triggered a new injury with its own statute of limitations.²¹ The action is therefore not time-barred.

¹⁷ 46 U.S.C. §41301.

¹⁸ *Maher Terminals, LLC v. The Port of New York and New Jersey*, 2011 WL 7144003; Docket No. 08-03 (2011 F.M.C.) at*28-29. See also, *Seatrains, Inc., v. Puerto Rico Maritime Shipping Auth.*, 18 S.R.R. 1079 (1979 ALJ) (denying motion to dismiss on statute of limitations grounds, because Complainant had alleged continuing discriminatory conduct, with each “new act giving rise to alleged injury”). See also *FIAT Chrysler v. Wallenius*, 2011 WL 551713; Docket No. 17-09 (2018 F.M.C.).

¹⁹ *Tobin v. Liberty Mut. Ins. Co.*, 553 F.3d 121, 130 (1st Cir. 2009) (quoting *Nat'l R.R. Passenger Corp. v. Morgan*, 536 U.S.101, 117 (2002)).

²⁰ *Camara de Mercadeo, Industria, y Distribucion de Alimentos v. Vazquez*, 2013 WL 5652076, at *14 (D.P.R. Oct. 16, 2013), aff'd sub nom. *Industria y Distribucion de Alimentos v. Trailer Bridge*, 797 F.3d 141 (1st Cir. 2015).

²¹ *Dantzler, Inc., et. al. v. PRPA*, 335 F.Supp. 3rd 226, 251-252, citing *González García v. P.R. Elec. Power Auth.*, 214 F.Supp.2d 194, 200-201 (D.P.R. 2002).

Moreover, the Commission has adopted a flexible policy towards the statute of limitation period. In *Maher, supra*, the Commission stated that:

“[t]here are compelling reasons suggesting that a flexible approach to the accrual of a cause of action is the better course of action. The Commission has an interest in the precedent established by its adjudication of alleged Shipping Act violations such adjudication is a form of private enforcement of the rights established by Congress in the statute. Based on this understanding of the Act, a flexible rule permitting the inclusion of complaints that would otherwise be dismissed under a more strict approach would allow the Commission to pass on the legality of allegedly injurious conduct.” *Id.*, at *11.

The continuing violation doctrine applies to this case as an exception to the accrual period provided by the Shipping Act. Therefore, Toyota may seek a reparation award for the total amount of the damages suffered.

V. STANDARD OF REVIEW FOR A MOTION FOR SUMMARY JUDGMENT

The Commission applies the Federal Rules of Civil Procedure when deciding a Motion for Summary Judgment²². Summary judgment is appropriate when the pleadings and the record demonstrate that “there is no genuine dispute as to any material fact and the movant is entitled to judgment as a matter of law.” Fed. R. Civ. P. 56(a).

The administrative law judge must view the facts in the light most favorable to the nonmoving party, giving the nonmoving party the benefit of all justifiable inferences derived from the evidence in the record.²³ A motion for summary judgment should be granted only when genuine disputes of material fact do not exist.²⁴

A party opposing a motion for summary judgment cannot rest on the allegations of his complaint but must come forward and designate specific facts showing that a genuine issue of

²² See, *Maher Terminals, supra*.

²³ See, *Maher Terminals, supra*, citing, *Anderson v. Liberty Lobby, Inc.*, 477 U.S. 242, 249 (1986).

²⁴ *Id.*, citing, *McKenna Trucking Co., Inc. v. A.P. Moller-Maersk Line and Maersk Inc.*, 27 S.R.R. 1045, 1052 (1997).

material fact exists that can only be resolved by the trier of fact²⁵.

It is insufficient for the nonmoving party merely to reassert ultimate facts without providing any support for the contentions. The inferences to be drawn from the facts must be viewed in a light most favorable to the party opposing the motion.²⁶

However, “where questions of law alone are involved in a case, summary judgment is appropriate.”²⁷ That is, where the relevant facts are not in dispute and only one conclusion can be drawn from those facts, entry of summary judgment may be appropriate.²⁸

Here, as Toyota has demonstrated and the Federal District Court for Puerto Rico concluded, the continuing damages doctrine applies as an exception to the three-year statute of limitation of the Shipping Act. Since that is a question of law, summary judgment is appropriate in favor of Toyota. Consequently, Crowley’s request for summary judgment must be denied.

VI. CONCLUSION

First, respondent’s request for dismissal for lack of jurisdiction must be denied because: (1) as an ocean common carrier, it is subject to the Commission’s jurisdiction; (2) as an MTO, it is also subject to the Commission’s jurisdiction. If the matter cannot be resolved as a matter of law, however, Toyota is entitled to conduct jurisdictional discovery.

Second, respondent’s requests for dismissal based on Toyota’s alleged failure to state a claim upon which relief may be granted must be denied. As discussed above, as an ocean common carrier or an MTO Crowley has an affirmative duty to enforce just and reasonable regulations and

²⁵ *Maher Terminal, supra*, citing *Celotex v. Catret*, 477 U.S. 317, 324; *Nissan Fire & Marine Ins. Co., v. Fritz Companies Inc.*, 210 F.3d 1099, 1103 (9th Cir. 2000) *Nissan Fire & Marine Ins. Co., v. Fritz Companies Inc.*, 210 F.3d 1099, 1103 (9th Cir. 2000); *Reese v. Jefferson School Dist. No. 14J*, 208 F.3d 736, 738 (9th Cir. 2000).

²⁶ *Id.*, citing, *Gibson v. County of Washoe, Nev.*, 290 F.3d 1175, 1180 (9th Cir. 2002), *cert. denied*, 537 U.S. 1106 (2003).

²⁷ *Id.*, citing *Int’l Ass’n of Machinists & Aerospace Workers, Dist. 776 v. Texas Steel Co.*, 538 F.2d 1116, 1119 (5th Cir. 1976), *cert. denied*, 429 U.S. 1095 (1977).

²⁸ *Cathedral of Joy Baptist Church v. Village of Hazel Crest*, 22 F.3d 713, 719 (7th Cir. 1994) (affirming summary judgment on statute of limitations ground against party that claimed benefit of discovery rule).

Opposition to Motion to Dismiss and/or For Summary Judgment
practices relating to or connected with receiving, handling, storing, or delivering property. It also
must not engage in discriminatory practices such as charging the ESF.

Finally, the request for summary judgment must be denied because the continuing damages
doctrine applies to this case as an exception to the three-year statute of limitation of the Shipping
Act.

VII. PRAYER FOR RELIEF

WHEREFORE, Toyota requests that respondent's Motion to Dismiss and/or For Summary
Judgment be denied in its entirety.

RESPECTFULLY SUBMITTED.

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FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

TOYOTA DE PUERTO RICO, CORP.
Complainant

Docket No. 19-02

v.

PUERTO RICO PORTS AUTHORITY;
CROWLEY PUERTO RICO SERVICES;
AND OCEANIC GENERAL AGENCY INC.
Respondents

Appendix

Toyota de Puerto Rico, Inc. Counter Statement of Material facts.	2-3
Crowley Sailing Schedule	5
Sailing Schedule	7
Norberto A. Rodríguez Morales' Affidavit	9-10

EXHIBIT I

**FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges**

TOYOTA DE PUERTO RICO, CORP.

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CROWLEY PUERTO RICO SERVICES;
AND OCEANIC GENERAL AGENCY INC.

Respondents

Docket No. 19-02

**TOYOTA DE PUERTO RICO, INC.'S
COUNTERSTATEMENT OF MATERIAL FACTS**

TO THE HONORABLE ERIN M. WIRTH, Administrative Law Judge:

Pursuant to Rule 70 (b) of the Rules of Practice and Procedure, Complainant, Toyota de Puerto Rico Corp., (herein after "Toyota"), by and through the undersigned attorneys, respectfully submits this *Counterstatement of Material Facts* in response to *Crowley de Puerto Rico, Inc.'s Statement of Material Facts*.

1. Complainant does not dispute the "Undisputed Material Facts".
2. As to the "other Material Facts", Toyota does not have enough information to either accept or dispute them.
3. Additional Material Facts:

[Type here]

[Type here]

	Fact	Source
1.	Crowley began collecting the ESF from Toyota on November 20, 2011.	Rodriguez's Affidavit, Exhibit III, ¶3.
1.	Since then, Crowley issued more than 650 invoices to Toyota collecting the ESF.	Rodriguez's Affidavit, Exhibit III, ¶4.
2.	Crowley continued collecting the ESF even after it was declared unconstitutional by the Federal District Court for the District of Puerto Rico in October 16, 2013.	Rodriguez's Affidavit, Exhibit III, ¶5.
3.	Toyota has paid to Crowley \$753,830.00 on account of the ESF	Rodriguez's Affidavit, Exhibit III, ¶6.
4.	Crowley's last invoice to Toyota collecting the Enhanced Security Fee ("ESF") is dated 05/22/2016.	Rodriguez's Affidavit, Exhibit III, ¶7.
5.	Toyota's last payment of the ESF to Crowley was on 12/29/2017.	Rodriguez's Affidavit, Exhibit III, ¶8.
6.	As per Crowley's website, its Puerto Rico to the Caribbean LCL Sailing Schedule includes weekly departures to certain British Virgin Islands, Dominican Republic and Jamaica, among others.	PR to the Caribbean Sailing Schedule, Exhibit II.
7.	As per Crowley's website, its PR to Central America LCL Sailing Schedule, Crowley engages in foreign shipments to Costa Rica, El Salvador, Guatemala, Honduras, Nicaragua and Panama.	PR to the Central America Sailing Schedule, Exhibit III.

EXHIBIT II

CROWLEY®
People Who Know



PR to the Caribbean LCL
Sailing Schedule

BUILDING# 13 INTERNATIONAL MERCHANTILE CENTER GUAYNABO, PR 00970

Jan-18

Office closed on Monday - January 1, 2018 - New Year Day & January 25, 2018 - Martin Luther King

Destination	CUT-OFF (*Booked Cargo) Time: 12 noon	Sailing Day	Frequency	T/T (DAYS)	Sailing Date * special sailing du to holiday
ANTIGUA	Wednesday	Thursday	W	5	4,11,18,25
ARUBA	Thursday	Friday	W	19	5,12,19,26
BARBADOS	Thursday	Friday	W	18	5,12,19,26
CURACAO	Thursday	Friday	W	19	5,12,19,26
DOMINING REPUBLIC	Thursday	Friday	W	1	5,12,19,26
GRAND CAYMAN	Thursday	Friday	W	17	5,12,19,26
GRENADA	Thursday	Friday	W	19	5,12,19,26
GUYANA	Thursday	Friday	W	21	5,12,19,26
HAITI	Thursday	Friday	W	21	5,12,19,26
JAMAICA - KINSTON	Thursday	Friday	W	16	5,12,19,26
JAMAICA - MONTEGO BAY	Thursday	Friday	W	17	5,12,19,26
MOTSERRAT	Wednesday	Thursday	W	5	4,11,18,25
ST. CROIX	Wednesday	Thursday	W	3	4,11,18,25
ST. KITTS	Thursday	Friday	W	18	5,12,19,26
ST. LUCIA	Thursday	Friday	W	20	5,12,19,26
ST. MAARTEN	Thursday	Friday	W	18	5,12,19,26
ST. THOMAS	Thursday	Thursday	W	2	4,11,18,25
ST. VICENT	Thursday	Friday	W	20	5,12,19,26
SURINAME	Thursday	Friday	W	23	5,12,19,26
TORTOLA	Thursday	Friday	W	17	5,12,19,26
TRINIDAD - POINTE LISAS	Thursday	Friday	W	5	5,12,19,26
MIAMI / JACKSONVILLE	Thursday	Friday	W	7 to 9	5,12,19,26
NEW JERSEY	Wednesday	Thursday	W	8 to 10	4,11,18,25

Notes: Please verify with the Weekly Schedule for changes on sailing dates during the month.

For Shipments requiring AES, documents should be in received 48 hours prior sailing.

Legend: W=Weekly

CUT-OFF UNTIL 12:00PM - APPLIES to BOOKED CARGO ONLY

CUT-OFF FOR INBOND 48 HRS BEFORE SAILING DATE & HAZMAT CARGO - 72 HOURS BEFORE SAILING DATE

Receiving Hours: 7:30 am - 4:00 PM

For Booking contact: (787) 793-8575 Fax (787) 793-8717 Email: ccl.exports@crowley.com

Safety
It's Not Silent

EXHIBIT III



PR to the Central America LCL
Sailing Schedule

BUILDING# 13 INTERNATIONAL MERCHANTILE CENTER GUAYNABO, PR 00970

September-18

Destination	CUT-OFF (*Booked Cargo) Time: 12 noon	Sailing Day	Frequency	T/T (DAYS)	Sailing Date * special sailing du to holiday
San Jose, Costa Rica	Thursday	Friday	W	20 - 21	3,10,17,24,31
San Salvador, El Salvador	Thursday	Friday	W	20 - 21	3,10,17,24,31
Guatemala City, Guatemala	Thursday	Friday	W	20 - 21	3,10,17,24,31
San Pedro Sulas, Honduras	Thursday	Friday	W	20 - 21	3,10,17,24,31
Tegucigalpa, Honduras	Thursday	Friday	W	20 - 21	3,10,17,24,31
Managua, Nicaragua	Thursday	Friday	W	20 - 21	3,10,17,24,31
Colon, Panama	Thursday	Friday	W	20 - 21	3,10,17,24,31
Panama City, Panama	Thursday	Friday	W	20 - 21	3,10,17,24,31

Notes: Please verify with the Weekly Schedule for changes on sailing dates during the month.

For Shipments requiring AES, documents should be in received 48 hours prior sailing.

Legend: W=Weekly

CUT-OFF UNTIL 12:00PM - APPLIES to BOOKED CARGO ONLY

CUT-OFF FOR INBOND 48 HRS BEFORE SAILING DATE & HAZMAT CARGO - 72 HOURS BEFORE SAILING DATE

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For Booking contact: (787) 793-8575 Fax (787) 793-8717 Email: ccl.exports@crowley.com



EXHIBIT IV

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

TOYOTA DE PUERTO RICO, CORP.
Complainant

Docket No. 19-02

v.

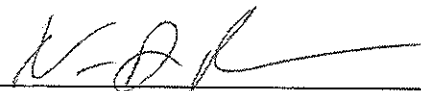
PUERTO RICO PORTS AUTHORITY;
CROWLEY PUERTO RICO SERVICES;
AND OCEANIC GENERAL AGENCY INC.
Respondents

AFFIDAVIT

1. My name is Norberto A. Rodriguez Morales, of legal age, married and resident of Toa Alta, Puerto Rico. I am a Financial Analyst of Toyota de Puerto Rico Corp. ("Toyota") since September, 2011.
2. As part of my duties, I analyze all the costs assigned to a vehicle as part of the total vehicle cost accounting. I have access to, and I have reviewed the documents that support the statements below.
3. Crowley began collecting the Enhanced Security Fee ("ESF") from Toyota on November 20, 2011.
4. Since then, Crowley issued more than 650 invoices to Toyota collecting the ESF.
5. Toyota has paid to Crowley \$753,830.00 on account of the ESF.
6. Crowley's last invoice to Toyota collecting the ESF is dated 05/22/2016.
7. Toyota's last payment of the ESF to Crowley was on 12/29/2017.

I HEREBY DECLARE under oath that I have read the foregoing Sworn Statement and it is true and correct to the best of my knowledge.

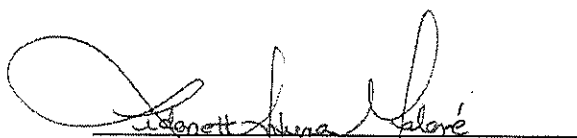
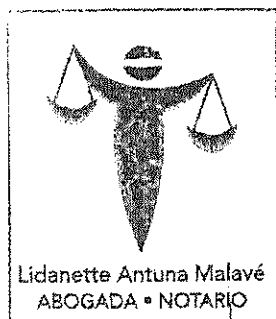
Executed in San Juan, Puerto Rico, this 18th of March, 2019.



Norberto A. Rodriguez Morales

AFFIDAVIT NUMBER: 211

Sworn and subscribed before me by Norberto A. Rodriguez Morales of the abovementioned personal circumstances, whom I have identified through his valid driver's license number 2250695.


NOTARY PUBLIC

**FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges**

TOYOTA DE PUERTO RICO, CORP.
Complainant

Docket No. 19-02

v.

PUERTO RICO PORTS AUTHORITY;
CROWLEY PUERTO RICO SERVICES;
AND OCEANIC GENERAL AGENCY INC.
Respondents

**NOTICE OF CERTIFICATE OF SERVICE OF COMPLAINANT'S OPPOSITION TO
MOTION TO DISMISS AND/OR FOR SUMMARY JUDGMENT AND MEMORANDUM
OF LAW IN SUPPORT THEREOF**

TO THE HONORABLE COURT:

COMES NOW, the undersigned counsel, and very respectfully state and prays as follow:

1. On March 18, 2019 Defendants filed an OPPOSITION TO MOTION TO DISMISS AND/OR FOR SUMMARY JUDGMENT AND MEMORANDUM OF LAW IN SUPPORT THEREOF.
2. As per the Federal Maritime Commission's Rules of Practice and Procedure, 46 C.F.R. §502.117, the undersigned attorney certifies that on that date, we also served a copy of the foregoing document upon each and all parties of record through their respective attorneys by electronic mailing.

WHEREFORE Complainant respectfully requests that this Commission take notice of the above.

RESPECTFULLY SUBMITTED.

In San Juan, Puerto Rico, this 19th day of March, 2019.

CERTIFICATE OF SERVICE

We hereby certify that on this same date we served a copy of the foregoing document upon each and all parties of record through their respective attorneys by electronic mailing.

REICHARD & ESCALERA, LLC
255 Ponce de León Avenue
MCS Plaza, 10th Floor
San Juan, PR 00917-1913
Telephone: (787) 777-8888



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